

Rajendra Prasad Sharma v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 21 July 2023 · 2023:AHC:146066-DB · WRIT - C No. 22257 of 2023 · **Writ disposed on consent; clause 6.14 plea to be considered**

HEADNOTE

Writ for a fresh domestic connection disposed of on consent. The licensee said dues on the premises barred a new connection under the U.P. Electricity Supply Code, 2005. The petitioner, pleading financial hardship, sought easy instalments under clause 6.14. The licensee did not object and said a fresh application would be considered in accordance with law. If moved within one week, the competent authority must dispose of that application so the dues may be deposited and the connection request processed.

FACTUAL SUMMARY

Rajendra Prasad Sharma sought a writ directing release of an electricity connection for his house on Plot No. 8, Chandra Nagar Extension, Mauza Gelana, Tehsil and District Agra. The licensee's counsel stated that electricity dues were outstanding on the property and that, under the U.P. Electricity Supply Code, 2005, no new connection could be given until they were cleared. The petitioner said he would pay but, owing to financial hardship, could not deposit the whole sum at once, and asked for easy instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility before a fresh connection

HOLDING

On consent the writ was disposed of with the observation that, if the petitioner moves a fresh application before the competent authority under clause 6.14 of the U.P. Electricity Supply Code, 2005 within one week, that authority shall dispose of the application so the petitioner may deposit the outstanding dues and the authority may process the application for a fresh electricity connection. ¶ 4-6

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress The petitioner, unable because of financial hardship to clear the outstanding dues in one payment, was left to move the competent authority within one week under clause 6.14 for easy instalments, and that authority was directed to dispose of the application. ¶ 4-6

installment-payment-clause-6.14 Clearance of the dues said to bar a new connection was channelled through a clause 6.14 instalment application, to be considered so the amount could be deposited and the connection request processed. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — EXISTENCE AND QUANTUM OF THE DUES, THE INSTALMENT SCHEDULE UNDER CLAUSE 6.14, AND WHETHER THE FRESH CONNECTION IS TO BE RELEASED

Left to the competent authority on an application to be moved within one week; the Court did not grant or refuse the connection. ¶ 5-6